

Saltmarsh Environmental Partners LLC

www.saltmarshenv.com

July 16, 2018

Sandra Little
Director of Operations
Salazar-Mendoza

Dear Ms. Little,

This letter sets out the terms on which Saltmarsh Environmental Partners will carry out the sediment sampling program we discussed for Salazar-Mendoza, and it asks for your countersignature so that a signed copy can go into the file before any work begins. I have kept it plain on purpose. Where a clause below reads as boilerplate, it is there because it has earned its place over many engagements, and not because a form demanded it.

The program covers the collection and laboratory analysis of sediment at the stations we agreed during our site visit. Samples will be collected under chain of custody, delivered to an accredited laboratory, and analyzed for the parameters set out in our scope discussion. The field method is a settled one, and we will follow it as written rather than improvising on site, so that a reviewer reading the record years from now can see exactly what was done, where, and when.

Results will be compiled in a data workbook, with each result tied to its station, its sample identifier, and the date it was taken. I check the totals in that workbook against the laboratory reports myself before anything is issued, because a figure I have not verified is a figure I would not be able to defend, and the value of this kind of work rests on being able to defend it. The program closes with a summary letter report that states what was measured, where, and when, and stops there. We do not editorialize a finding, and where the data leave a question open we will say so plainly rather than paper over it.

You will work mainly with two of our people. John Sanchez, our Senior Scientist, leads the technical side of the program and is responsible for the sampling design, the laboratory coordination, and the report. Heather Morton, our Field Technician, runs the sampling rounds and keeps the field record, which on a program like this is as much a deliverable as the numbers themselves. I sign what leaves this office and review the workbook before submission, so my name will be on the final report alongside theirs.

You will not have to chase us for status. We will send a short written report at about the midpoint and again as we near the end, and there will be a working session or two along the way with your site contact, so that nothing about access or scheduling has to be settled by email at the last minute. If a result ever looks like it needs your attention before the final report, you will hear it from us when we see it, not at delivery.

At the close of the program you will have three things: the summary report, the data workbook that stands behind it, and the field record for every round. The report is the document you would hand to an agency; the workbook and the field record are what let anyone, including a reviewer years from now, check the report against what was actually done. We keep copies of all three, and all three are yours.

Because the estuary is tidal, the rounds are planned around the water and the weather rather than the calendar, so that each sample is clean and comparable with the last. That sometimes means a round moves by a day or two; when it does, Heather will let your site contact know in advance. None of that changes the fixed fee, and none of it changes the stations or the method, which stay the same from the first round to the last.

The fee for the program is a fixed \$56,500, which covers the field collection, the laboratory analysis at the agreed parameter list, the data workbook, and the summary report. It does not cover work outside that scope, and if something on the site turns out to call for more than we have described here, I will tell you before we do it rather than after. We are prepared to begin on July 26, 2018, subject to site access and to conditions on the estuary.

Fees and Payment

The fixed fee is invoiced in two parts: half on commencement and the balance on delivery of the summary report. Invoices are due within thirty days. Laboratory analysis is included at the parameter list we agreed; analysis added at your request beyond that list is billed at cost, and only after you have approved the addition in writing.

Term and Termination

The engagement runs from commencement until the summary report is delivered and accepted. Either of us may end it on fifteen days' written notice. If you end it partway through, you owe us for the fieldwork completed and the laboratory work already committed to that point, and we will hand over the field record and any data in hand so that nothing done so far is lost.

Confidentiality

We treat the site data, your business information, and the fact of this engagement as confidential, and we do not discuss them outside the firm without your consent. The one exception is a disclosure required by law or by an agency with jurisdiction over the site, and in that event we will tell you what is being disclosed and to whom, so far as we are permitted to.

Limitation of Liability

Our work rests on the conditions found at the sampling stations on the days they were sampled, and sediment conditions can vary across a site and over time. Our liability for the engagement is limited to the amount of the fee, and we are not responsible for decisions others make on the basis of the report beyond what the data in it actually support. This is not a hedge against doing the work carefully; it is a plain recognition of what a sampling program can and cannot tell you.

Governing Law

This agreement is governed by the law of the state in which the site sits, and any dispute under it will be resolved there.

If these terms match your understanding, please sign below and return one copy to me, keeping the other for your file. If anything here reads differently from what we discussed, call me before you sign and we will settle it then. I am glad to be doing this work with you, and I think the record it produces will be one you can rely on.

Angela Flynn

Managing Principal

Date: July 16, 2018

Sandra Little

Director of Operations, Salazar-Mendoza

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